

# MASTER SERVICES AGREEMENT

Agreement No. HC-2025-114 · Effective July 1, 2025

This Lambda Master Services Agreement (the "Agreement") is entered into as of July 1, 2025 (the "Effective Date") by and between **Lambda, Inc.**, a Delaware corporation with offices at 2510 Zanker Road, San Jose, CA 95131 ("Provider"), and **xAnthropenAI, Inc.**, a Delaware corporation with offices at 1200 Harbor Way, Suite 400, San Francisco, CA 94107 ("Customer"). Provider and Customer are each a "Party" and together the "Parties."

## 1. DEFINITIONS

**1.1 Instance.** "Instance" means a GPU virtual machine provisioned by Provider for Customer, identified by a unique instance identifier.

**1.2 Lifecycle events.** "PROVISIONED" and "TERMINATED" mean the lifecycle states reported for an Instance by the Provider API, with their timestamps.

**1.3 Instance-hour.** "Instance-hour" means one hour, or part of an hour, during which an Instance is in a billable state.

## 2. SERVICES

**2.1 Provision of services.** Provider will make on-demand and reserved GPU Instances available to Customer through the Provider console and API, subject to available capacity in the regions Customer selects.

**2.2 Customer accounts.** Customer is responsible for activity under its accounts and for keeping its API credentials secure.

## 3. FEES

**3.1 Rates.** On-demand 8x H100 instances are billed at $100.00 per instance-hour; 8x A100 at $64.00.

**3.2 Taxes.** Fees exclude taxes. Customer will pay applicable sales, use, and similar taxes, other than taxes on Provider's income.

**3.3 Price changes.** Provider may change on-demand rates on thirty (30) days' written notice. Changes do not apply to usage before the notice period ends.

## 4. METERING AND BILLING

**4.1 Metering increment.** Usage is metered per started hour from the PROVISIONED event.

**4.2 Termination ends billing.** Billing ends when the instance reaches TERMINATED, as confirmed by the provider API. No charges accrue after termination.

**4.3 Idle running instances.** Instances in a running state are billable whether or not a workload is active.

**4.4 Minimum duration.** There is no minimum duration beyond the first metered hour.

**4.5 Invoices.** Provider will invoice monthly in arrears. Each invoice line identifies the Instance, the billed instance-hours, and the rate applied.

## 5. PAYMENT

**5.1 Payment terms.** Customer will pay undisputed amounts within thirty (30) days of the invoice date.

**5.2 Disputed amounts.** Customer may withhold amounts disputed in good faith under Section 7 until the dispute is resolved. Undisputed amounts on the same invoice remain payable.

## 6. TERM AND TERMINATION

**6.1 Term.** This Agreement begins on the Effective Date and continues for twenty-four (24) months, renewing for successive twelve (12) month terms unless either Party gives sixty (60) days' notice of non-renewal.

**6.2 Termination for breach.** Either Party may terminate this Agreement if the other Party materially breaches it and fails to cure within thirty (30) days of written notice.

## 7. BILLING DISPUTES

**7.1 Notice of dispute.** Customer will notify Provider of a disputed charge in writing, identifying the invoice, the line, the amount disputed, and the basis for the dispute.

**7.2 Billing disputes.** Disputes must be raised within 60 days of the invoice date. Verified metering errors are credited in full.

**7.3 Credits.** Credits issued under this Section are applied to the next invoice or, on Customer's request, refunded within thirty (30) days.

## 8. GENERAL

**8.1 Confidentiality.** Each Party shall hold the other Party's Confidential Information in confidence, use it only to perform under this Agreement, and protect it with at least the care it uses for its own information of like kind, and no less than reasonable care.

**8.2 Limitation of liability.** Except for breach of confidentiality or a Party's indemnification obligations, neither Party is liable for indirect, incidental, or consequential damages, and each Party's aggregate liability is limited to the fees paid or payable in the twelve (12) months preceding the claim.

**8.3 Governing law.** This Agreement is governed by the laws of the State of California, without regard to its conflict of laws rules. The state and federal courts in San Francisco County have exclusive jurisdiction.

**8.4 Entire agreement.** This Agreement, including its exhibits and any order forms, is the entire agreement between the Parties on its subject matter and supersedes all prior proposals and understandings.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**Lambda, Inc.**

*Marcus Ellery*

Name: Marcus Ellery
Title: VP, Cloud Sales
Date: June 24, 2025

**xAnthropenAI, Inc.**




*Matthew Petersen*

Name: Matthew Petersen
Title: Controller
Date: June 24, 2025

Executed electronically via Ironclad. Envelope ID IC-7Q2K-114-HL.

## EXHIBIT A · RATE CARD

| Instance type | Commitment | Rate |
|---|---|---|
| 8x H100 (h100.8x) | On-demand | $100.00 per instance-hour |
| 8x A100 (a100.8x) | On-demand | $64.00 per instance-hour |

Rates are in U.S. dollars and exclude taxes. Metering and billing follow Section 4 of the Agreement.